

HOUSE No. 5541

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, June 29, 2026.

The committee on Transportation, to whom was referred the petition (accompanied by bill, House, No. 5400) of Richard M. Haggerty, Kenneth I. Gordon and Michelle L. Ciccolo that the city of Boston be authorized to grant permanent easements over certain land in the city of Woburn and town of Burlington to the Commonwealth for highway purposes, reports recommending that the accompanying bill (House, No. 5541) ought to pass.

For the committee,

JAMES ARCIERO.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Massachusetts Department of Transportation to take easements over certain land located in the city of Woburn and the town of Burlington held in trust by the city of Boston for the Mary P. C. Cummings Testamentary Trust for highway purposes.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith the commonwealth of Massachusetts, acting by and through its department of transportation to take certain easements for highway purposes, to support the intersection improvement project being undertaken by the commonwealth at the intersection of Cambridge Road at South Bedford Street and Bedford Road in Woburn and Burlington, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public safety and convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Pursuant to section 5A of chapter 3 of the general laws, notwithstanding
2 any general or special law to the contrary, the commonwealth of Massachusetts, acting by and
3 through its department of transportation, may take for highway purposes, certain parcels of land
4 located in Woburn and Burlington, held in trust by the city of Boston department of Treasury,
5 being temporary construction areas of 4,603 square feet and permanent easements of 8,917
6 square feet and shown on a plan of land entitled, “Massachusetts Department of Transportation
7 Highway Division Intersection Improvement Project Cambridge Road at South Bedford Street
8 and Bedford Road in the city and town of Woburn/Burlington, Middlesex County Preliminary

Right of Way Plans”, to be filed with the chief engineer of the highway division of the Massachusetts Department of Transportation and recorded with the Middlesex north registry of deeds.

SECTION 2. In anticipation of and as planned mitigation for the takings described in section 1 of this act, and to ensure no net loss of land subject to article 97 of the amendments to the constitution of the commonwealth, during the May 25, 2025 approval of a special permit to Jumbo Self Storage, LLC - Jumbo Capital Management for land being located at 7 Wheeler Road in Burlington, Massachusetts and shown on Assessor's Map 52 as Parcels 4 and 6, the town of Burlington required that land be set aside for future improvements to the intersection of Cambridge Road at South Bedford Street and Bedford Road to satisfy Article 97. The town of Burlington further accepted a conservation restriction from Wheeler Self Storage, LLC on the Wheeler Road property containing approximately 9 acres, recorded with the Middlesex south registry of deeds at Book 78014, Page 433. As described in conditions G and H of that certain special permit decision granted by the town of Burlington planning board recorded with the Middlesex south registry of deeds at book 71169 and page 469, said conveyance was specifically intended to be mitigation for the transfer described in section 1.

SECTION 3. The department of transportation shall assume all costs associated with engineering, surveys, appraisals, deed preparation and other expenses necessary to execute the takings authorized by this act.

SECTION 4. This act shall take effect upon its passage.